



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: Planning Commission Petition for a Zoning Map Amendment
Date: October 28, 2024

Background:

The item for consideration is a petition for a Zoning Map Amendment (zone change). The UDC allows the Planning Commission to petition the Governing Body to make a Zoning Map Amendment in Subsection 2.2.1.b.2.

At their regular meeting on October 7, 2024, the Planning Commission had an applicant requesting the UU Urban Use Overlay zone be added to their parcel. The Planning Commission discussed the merits of applying the UU to one parcel, and eventually recommended approval with a one-vote margin. At the end of the meeting, under other business, the Planning Commission discussed the option of expanding the UU to a larger area for a more robust district. The Planning Commission was informed of their ability to petition the Governing Body. At their regular meeting on October 21, 2024, the Planning Commission made a formal motion to petition. The petition is attached.

The petition requests changing the zoning of the block face along the east side of Warren between 21st Street and 22nd Street from MUR Mixed-Use Residential to MUR Mixed-Use Residential with UU Urban Use Overlay. A map of the area is below, and the legal description is in the attached petition.



To proceed with a formal Zoning Map Amendment, the petition needs accepted by the Governing Body, which will direct Staff to initiate the Zoning Map Amendment process, including legal notice, posted notice, mailed notice, a Planning Commission Public Hearing, and the drafting of the Zoning Map Amendment Ordinance.

The proposed Governing Body review schedule for the Resolution is as follows:

- Introduction and Referral October 28, 2024
- Public Services Committee November 5, 2024
- Final consideration November 12, 2024

A separate Ordinance would be brought forward after the Resolution is approved.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION ACKNOWLEDGING RECEIPT OF A PETITION BY THE CITY OF CHEYENNE PLANNING COMMISSION TO ADD THE UU URBAN USE OVERLAY TO AN AREA ZONED MUR MIXED-USE RESIDENTIAL EMPHASIS WITH FRONTAGE ON THE EAST SIDE OF WARREN AVENUE BETWEEN 21ST AND 22ND STREETS AND DIRECTING STAFF TO INITIATE A ZONING MAP AMENDMENT PURSUANT TO THE PETITION."

WHEREAS, the City of Cheyenne Planning Commission (Planning Commission) held a regularly scheduled Public Meeting on October 7, 2024 and while discussing an agenda item, signaled the need for and the Planning Commission's support of a UU Urban Use Overlay in several areas of throughout the community;

WHEREAS, 2.2.1(b)(2) of the Unified Development Code allows for the Planning Commission to petition the Governing Body for a zoning map amendment;

WHEREAS, at its October 7, 2024 meeting, the Planning Commission was specifically concerned about parcels of property in an area zoned MUR Mixed-Use Residential Emphasis with frontage on the east side of Warren Avenue between 21st and 22nd Streets;

WHEREAS, the legal description of the property area at issue is: legally described as: the south ½ of Lot 3, the west 9' of the north ½ of Lot 3, Lot 4, and Lot 5, Block 234, Original City, Cheyenne, Wyoming;

WHEREAS, at its October 21, 2024 meeting, the Planning Commission voted to petition the Governing Body for a zoning map amendment to add the UU Overlay to the parcels of property in an area zoned MUR Mixed-Use Residential Emphasis with frontage on the east side of Warren Avenue between 21st and 22nd Street; and

WHEREAS, immediately following the October 21, 2024 meeting, the Chair of the Planning Commission signed a Petition requesting that the Governing Body add the UU Urban Use Overlay to an area zoned MUR Mixed-Use Residential Emphasis with frontage on the east side of Warren Avenue between 21st and 22nd Streets (attached and incorporated herein as Exhibit A).

NOW THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body acknowledges receipt of the petition by the City of Cheyenne Planning Commission to add the UU Urban Use Overlay in an area zoned MUR Mixed-Use Residential Emphasis with frontage on the east side of Warren Avenue between 21st and 22nd Streets;

BE IT FURTHER RESOLVED, that staff of the Planning and Development Department are directed to draft an amendment to the Unified Development Code to add the UU Urban Use Overlay in an area zoned MUR Mixed-Use Residential Emphasis with frontage on the east side of

Warren Avenue between 21st and 22nd Streets, legally described as: the south ½ of Lot 3, the west 9' of the north ½ of Lot 3, Lot 4, and Lot 5, Block 234, Original City, Cheyenne, Wyoming.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

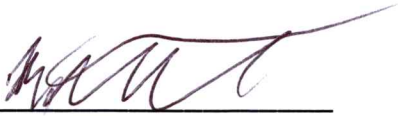
Exhibit A

PETITION

Pursuant to Cheyenne's Unified Development Code 2.2.1.b.2, the City of Cheyenne Planning Commission at their regular meeting on October 21, 2024, voted to petition the Governing Body to change the zoning of the property described as:

The south ½ of Lot 3, the west 9' of the north ½ of Lot 3, Lot 4, and Lot 5, Block 234, Original City, Cheyenne, Wyoming.

to include the UU Urban Use Overlay.



Robert Mathia
Chair, Cheyenne Planning Commission

Attest: 